

Veeri Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 September 2017 · Writ-C No. 41420 of 2017 · Writ-C No. 41420 of 2017 · **Writ dismissed as withdrawn with liberty to departmental remedies**

HEADNOTE

On counsel's request after the matter was heard, the Division Bench dismissed the writ as withdrawn, with liberty to the petitioner to pursue any departmental remedy available under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. The Court did not examine the merits of the supply dispute.

FACTUAL SUMMARY

Veeri Singh filed Writ-C No. 41420 of 2017 in the Allahabad High Court against the State of Uttar Pradesh and two others. The Division Bench of Amreshwar Pratap Sahi and Rajiv Lochan Mehrotra, JJ. heard the matter. The order does not set out the facts of the underlying electricity grievance. After hearing, counsel for the petitioner, Sri Madan Mohan, sought leave to withdraw the writ so that the petitioner could pursue any other departmental remedy available under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · EA2003:: / UP-2005::

writ withdrawal; departmental remedy

HOLDING

The writ petition is dismissed as withdrawn with liberty to the petitioner to avail any other departmental remedy available under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG Order styles the statute as 'U.P.Electricity Act, 2003' (Electricity Act, 2003); no section or Supply Code clause is identified.

PRINCIPLE TAGS

writ-withdrawal-departmental-remedy On counsel's request after the matter was heard, the Division Bench dismissed the writ as withdrawn, with liberty to the petitioner to pursue any departmental remedy available under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. The Court did not examine the merits of the supply dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

Writ withdrawn without adjudication; liberty reserved to departmental remedies under the Electricity Act, 2003 and the Supply Code, 2005. ¶ 1